

		all of the relevant circumstances, the trial court ‘transgresse[d] the confines of the applicable principles of law’ [Citation] and thereby abused its discretion.” (<i>Pelton-Shepherd Industries, Inc. v. Delta Packaging Products, Inc.</i> (2008) 165 Cal.App.4th 1568, 1588 (reversing order granting untimely motion to compel).) In its Reply, Defendant quotes <i>Pelton-Shepherd Industries</i>, “But the fact that a party does not have a <i>right</i> to have a discovery motion heard after the discovery motion cutoff date does not mean the court has no <i>power</i> to hear it, or that the court errs in hearing it.” (<i>Pelton-Shepherd Industries, supra</i>, 165 Cal.App.4th at 1586.) However, the Court of Appeal in that matter held that a party must file a motion to reopen discovery or have a motion heard after the discovery cutoff. (Ibid.) Indeed, the Court of Appeal held that the trial court abused its discretion by hearing the motion to compel without first reopening discovery. (Id. at 1587.) Here, the Court already denied Defendant’s first request to have these discovery motions heard after the discovery cutoff, and Defendant has not filed a motion to reopen discovery. Accordingly, the motions are denied. Pursuant to Code Civ. Proc. §§ 2030.300 and 2031.310, the Court shall impose a monetary sanction against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to an interrogatory or inspection demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. The motions were made with substantial justification, as Plaintiffs have asserted boilerplate objections that largely lack merit. Both Defendant and Plaintiffs’ request for monetary sanctions are denied. Defendant shall give notice of this ruling.
6	Lampley v. Hermosa 2019 LP	Jamala Y. Garcia’s motion to substitute Ms. Garcia as Successor in Interest in place of Plaintiff El Veasta Lampley is CONTINUED TO January 21, 2027, at 1:30 p.m. in this department for supplemental briefing, as discussed below. <u>Legal Authority</u> “On motion after the death of a person who commenced an action or proceeding, the court shall allow a pending action or proceeding that does not abate to be continued by the decedent’s personal representative or, if none, by the decedent’s successor in interest.” (Code Civ. Proc., § 377.31.) “Decedent’s successor-in-interest” means “the beneficiary of the decedent’s estate or other successor in interest who succeeds to a cause of action or to a particular item of the property that is the subject of a cause of action.” (Code Civ. Proc., § 377.11.)